ETHICS FREE MCQ

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1. In preparing Curriculum vitae all is relevant except one;

- a. Your name and State of origin.
- b. Your schools and qualification
- c. Your religion and your destiny
- d. Your address and signature.

2. A Counsel must do all but one;

- a. Diligent to his duties.
- b. Competent in handling matters
- c. Assuring clients success
- d. Respectful to the Court.

3. One of the following is not among the categories of persons entitled to practice law in Nigeria under the Legal Practitioners Act Cap L11 2004

- a. Those entitled to practice by virtue of their office.
- b. Those entitled to practice with leave of the Court.
- c. Those entitled to practice for the purpose of particular proceedings.
- d. Those entitled to practice generally.

4. One of the following is not a necessary condition to be fulfilled by aspirants to the Nigerian Bar.

- a. Success at Law School Portfolio Assessment
- b. Nigerian Citizenship
- c. Good Conduct
- d. Success at Bar Part II Examinations.

5. One of the following is not a function of the Body of Benchers;

- a. Call to the Bar of successful aspirants to the Bar.
- b. Prescription of Call fees
- c. Prescription of practicing fees
- d. Issuance of Certificate of Call to Bar.

6. Where a client fails to pay a legal practitioner for services rendered professionally all the following options are available to the legal practitioner except:

- a. Lien on client's property
- b. Obtain charging order on client's personal property.
- c. Obtain charging order on property recovered or procured by the lawyer on behalf of the client.
- d. Take his fees from client's money in his possession.

7. The following are the exclusive rights of a legal practitioner except:

- a. Appointment as a Judge to a Superior Court.
- b. Appointment as Attorney-General and Minister of Justice.
- c. Preparation of documents for probate and letters of Administration.
- d. Registration of Business Name.

8. A Legal Practitioner can engage in any of these businesses except:

- a. Secretary of board of directors of a company
- b. Executive director of a Company
- c. Non-executive director of a Company.
- d. A Shareholder of a Company.

9. The Legal practitioners ought to pay their practicing fee within..... period every year:

- a. 3 month
- b. On or before the next year march 31st
- c. 6 month
- d. None of the above

10. Mr.Akeem John, Ms. Nkechi Hassan and Mr. Freeborn practice law under the name and style of Purple Chamber. They all practice in their respective field of law.
The Law firm has a number of clients and it has a relationship with Exxon Mobil Limited and handles only all taxation matter on behalf of the company. On the 2nd of June 2016, Miss Ebele Chuckwu Walked into the office of Purple Chamber asking that it represents her in a matter of unlawful termination of employment by Exxon Mobil Limited. On the 1st of July 2016, Lagos State government wrote the firm asking for its representation in a matter of breach of contract to be instituted against Fruggal Nigerian Limited. Mr. John died on the 27th of June, 2016.
Now answer questions
The business relationship that exists among the lawyers is:

- a. A Law practice
- b. An Associate ship
- c. A Sole proprietorship
- d. A partnership

11. The relationship that exists between the firm and Exxon Mobil Limited is:

- a. A retainer
- b. A general retainer
- c. A specific retainer
- d. A special retainer

12. Assuming the law office was a partnership, After the death of Mr. John, one of the following is true:

- a. The firm can continue carrying on business using his name
- b. The firm must change its name
- c. None of the above
- d. Any of them

13. When Ms. Ebele walked into the law office, the meeting between her and the lawyers is called

- a. De-briefing
- b. Counselling
- c. Interrogation
- d. Interview

14. Queeneth Udowa has just been called to the Nigerian Bar. She intends to practice in Oil and Gas Law. She has agreed to work with her colleagues who are also legal practitioners. Queeneth Udowa has a capital base of one million naira which she received as donations from her parents and well-wishers of her call to Bar ceremony, which took place at Bwari, Abuja. She has decided to rent a 3 bedroom flat at Opebi in Ikeja as her Law office premises. Ochuna Chucks, Obianuju Okuguni, Jimmy Promise, Oluwa-Shehun and Azundah Ovunda have agreed to come and work for Queeneth in her law office, registered as Queeneth & Co. they have also consented to engage three support staff.
From the above scenario, answer question 14-16.
The Law can suitable be classified as _____ firm

- a. Large
- b. Small
- c. Medium
- d. Average

15. When the counsel addresses the court "I am speaking from the bar" it means he is telling the court that:

- a. He is speaking from the seat reserved for lawyers in court
- b. He is speaking upon his honour as counsel and should therefore be believed
- c. He is speaking as counsel on behalf of his client
- d. All of the above

16. The title "Notary Public of Nigeria" is conferred on a legal practitioner by the

- a. Body of Benchers
- b. Nigerian Bar Association
- c. Chief Justice of Nigeria
- d. Legal Practitioner Privilege Committee

17. On the 30th March, 2017 Mr. Ezirim Basil SAN was appearing before the High court of Delta State in Asaba for a criminal matter. Unknown to him, Mr. Francis Irowa the Honourable Attorney General and Commissioner of Justice were also in court to enter a nolle prosequi in criminal matter pending before same

court. Shortly before the learned trial Judge started sitting, Mr. Walter Ochen a member of the bencher rushed into the court and joined them in the inner bar. The chairman of Nigerian Bar Association Asaba Branch was also in court. Answer the following questions
Which of the following is entitled to call his case first in accordance with order of precedence in court?

- a. The chairman of Nigerian Bar Association Asaba Branch
- b. Senior Advocate of Nigeria
- c. The Bencher
- d. Honourable Attorney General and Commissioner of Justice

18. Mr Paul Agwu, a new wig was full admiration of the way Mr. Ezirim Basil SAN handled his matter and also desire to become a SAN, which of the following requirement must he fulfill

- a. He must be an official in his NBA branch
- b. He must be member of at least one professional body
- c. He not be less than 10 years post call at the bar
- d. None of the above

19. One of the requirement before conferment of the rank of SAN is that the applicant must show particulars of:

- a. 29 contested cases handled by him, 5 Supreme Court cases, 4 Court of Appeal cases, and 20 at the High Court.
- b. 10 contested cases handled by him, 3 Supreme Court cases, 2 Court of Appeal cases, and 5 at the High Court
- c. 29 contested cases handled by him, 4 Supreme Court cases, 5 Court of Appeal cases, and 20 at the High Court
- d. None of the above

20. The expression “counsel should not undress the court” means

- a. Counsel must not de-robe the judge
- b. Counsel must dress up before coming to court
- c. Counsel must not leave the bar empty while the court is still sitting
- d. All of the above

In the course of your externship, you accompanied your Principal to the swearing in of 19 newly appointed Judges of the National Industrial Court (N.LC.) They were sworn in by the 21 .....Your Principal later gave you an assignment to briefly state the procedure for their appointment. You stated that the 22..... advises the 23..... who then recommends them to the 24..... To qualify for appointment, a candidate must

21.....

- (a) Ag. President t Nigeria
- (b) Attorney-General of the Federation.
- (c) Chief Judge of the Federal High Court
- (d) Chief Justice of Nigeria.

22 .....

- (a) National Judicial Council
- (b) The Federal Ministry of Justice.
- (c) The Federal Judicial Service Commission.
- (d) The Federal Judicial Agency.

23. .....

- (a)Attorney-General of the Federation.
- (b) The President.
- (c) The National Judicial Council
- (d)The Federal Judicial Service Commission.

24. .....

- (a) The Senate.
- (b)The President
- (c) House of Represntative
- (d) The Attorney eneral of the Federation and Minister of Justice.

25. .....

- . (a) Be of good behavior in and out of the court
- (b) Must not be involved in any act of corruption or corrupt practices.
- (b) Must not be involved in any act of corruption or corrupt practices.

- d) All of the above.

26. During the Law Firm's weekly meeting, Mr.Adetunji Williams an external was asked to take down minutes of the meeting. He noted that certain persons were "In attendance" in the minutes, which meant:

- (a) Members of the firm present.
- (b) Invited persons other than members present.
- (c) Members absent with apologies.
- (d) Members represented by proxies

27. Mr. Adetunji Williams during his court externship to the Federal High Court sitting in Port 1-Jarcourt, Rivers State observed that the inner bar or front row in Courts are exclusively reserved for all but one of the following

- (a) The Attorney-General of the Federation
- (b) The Attorneys-General of the States.
- (c) The President of Nigerian Bar Association.
- d) Senior Advocates of Nigeria.

Your new question!

28. Joseph Ojo accompanied his Principal to the Lagos Muti door Courthouse during the externship for the purpose of having the ADR Judge endorse a settlement that had earlier on hcen reach by parties. The Principal explained to him that once endorsed, it would qualify

- (a) An award enforceable by court, upon application by motion.
- (b) A consent judgment of the Lagos High Court and enforceable by the Lagos High Court.
- (c) A Memorandum of Understanding enforceable by Court, upon application by originating summon.
- (d) None of the above.

29. The most appropriate stage at which A.O Olaniyi Esq will tell Chief Emeka Coker That communication between them is confidential during the interview is the:

- (a) Preparation of interview stage.
- (b) Beginning of the interview stage (meet greet stage).
- (c) Telling the story stage.

- (c) Telling the story stage.

Your new question!

30. Unless Chief Emeka Coker authorizes A. O. Olaniyi Esq, the duty of confidentiality ceases in the following circumstance except:

- (a) Where disclosure accords with the client's religious belief.
- (b) Where the Lawyer is ordered by a Court to disclose.
- (c) Where the disclosure is neccessary for a Lawyer to defend himself or associates
- (d). Where communication is in furtherance of an illegal purpose

31. A.O Olaniyi Esq received a cheque of N10 million from the trustee, being proceeds of the trust due to Chief Emeka Coker pursuant to the Judgment of the Court. The cheque ought to be finally paid into:

- (a) The Firm Accountant.
- (b) The Client's Account.
- (c) The Trust Account.
- (d) None of the above.

32. In compliance with Legal Practitioners Accounts Rules, the N10million Judgment sum and proceeds of trust received by A. 0. Olaniyi ought to be posted to the:

- (a) Debit Column
- (b) Credit Colum.
- (c) Expenditure Column.
- (d) Income Column.

Where G. N. Assumpta, Esq has been briefed by Chief Emeka Coker to take over the Matter, the new Counsel should do the following except:

- (a) Inform the Court of the change.
- (b) Ensure the fees of the former Counsel is paid.
- (c) Inform the Nigerian Bar Association (NBA)
- (d) Inform the old counsel of the change.

You were at the Federal High Court Akure on May 19, 2017 when the following transpired in

Court: Court Clerk: Suit No. FHC/CS/50113 -Oku Vs NDD & 2 Ors.

Mr. Oku: With utmost humility My Lord, My nameis O. O.Oku Esq and I am appearing for myself,

Court Clerk: My Lord, parties are present in Court and are ready to go on." Mr. Oku fully robed, conducted his case from the Bar and went into the witness box to be cross examined with his robe on. Another Counsel in the Court interrupted the proceedings to state that Mr. Oku had no right to conduct his case from the Bar fully robed.

Mr. Oku: "My friend, keep quiet if you don't know the Law. By Rule 6 of the RPC, 976 and on the authority of Gani Vs N13A, I can only remove my wig and gown with the permission of this Court."

Answer the following questions using the above scenario:
34. Mr. Oku's introduction of himself before the Court is called:

- (a)Announcing his presence
- (b)Entering appearance.
- (c)Standing in for the Plaintiff
- (d) Announcing his appearance

35. Which of the following comments on Mr. Oku's representation of himself and his conduct of the case, is correct?

- (a) He can appear for himself and conduct his case while fully robed.
- (b) He can appear for himself but it was unethical and against the RPC for him to conduct his case from the Bar and in full robes.
- (c) His appearance was wrong since he is a litigant but he was right to have conducted his case in the manner he did.
- (d) Both his representation of himself and his conduct of the case are unethical under the RPC.

Your new question!

36. The reaction of Mr. Oku to the objection raised in respect of his conduct of the case

- a. A breach of his duty to the legal profession
- b. A breach of his duty to the Court
- c. A breach of his duty to his colleague
- d. All of the above

During the externship period, Robert attended several court sessions where he witnessed the calling of cases from the ....(37).. By the court's... (38) ....He also witnessed the way lawyers who came to represent their client.....(39)...

Where matters were unable to proceed, Robert learnt that parties on either side had to pick other date(s) convenient to the court. In other words, such matters were ...(40)... There were also instances where a lawyer to a party present in court had asked the judge in writing to put the case on hold for him as he was due to make it to court a little later the same day. This was referred to as having the matter ....(41)...
(37). .....

- (a) Roll of lawyers.
- (b) Registrar of cases
- (c) Cause list.
- (d) Case list

38. .....

- (a) Registrar
- (b) Judge
- (c) Court clerk
- d) Bailiff of the court

39. .....

- (a) Entered Appearance
- (b) Announced Appearance
- (c) Marked the Register
- (d) Mentioned Appearance

40. .....

- (a) Postponed
- (b) Adjourned
- (c) Set aside
- d) Stood Down

41. .....

- (a) Postponed
- (b) Delayed
- (c) Adjourned
- (d) Stood down

On Robert's visits to the Supreme Court of Nigeria, he observed the presence of the Attorneys-General of the Federation and States as well as Senior Advocates of Nigeria (SAN). He noted that this category of persons enjoyed several privileges such as ....(42)... and..... (43) .....

Robert further observed that there was seniority at the Bar and watched how the hierarchy of lawyers in the profession played out in court in the following order: ....(44)..... Robert learnt that where two or more Senior Advocates of Nigeria (SAN) are appearing before the court...,(45).... would be heard before the others.

Finally, Robert noticed that another group of lawyers also enjoyed similar privileges in court. They are referred to as .....(46) .....

42. .....

- (a) Sitting in front of the court.
- (b) Sitting at the Inner Bar in the court room.
- (c) Sitting at the Inner Bar or front row of the court to the left of the Judge
- (d) Sitting at the front row to the right of the Judge.

43 .....

- (a) Mention their cases first with leave of other counsel present.
- (b) Call their matters out of turn.
- (c) Call their matters for mention out of turn
- (d) Call their matters for mention first with leave of counsel present.

44. .....

- (a) Attorney-General of the Federation, Attorney-General of the States, Benchers, Senior Advocates of Nigeria.

- (b) Attorney-General of the Federation, Benchers, Attorney-General of the States, Senior Advocates of Nigeria.
- (c) Attorney-General of the Federation. Senior Advocates of Nigeria, Benchers, Attorney-General of the States.
- (d) Attorney-General of the Federation, Benchers, Senior Advocates of Nigeria, Attorney-General of the States.

45. .....

- (a) The one who is more Senior at the Bar.
- (b) The one who was earlier in time to be made a Senior Advocate of Nigeria.
- (c) The one with a better etablished Law Practice.
- (d) The one who arrives the court room first.

46. .....

- (a) Members of the Council of Legal Education.
- (b) Members of the Legal Practitioners' Privileges Committee.
- (c) The Nigerian Bar Association President as well as all State Nigerian Bar Association Chairmen.
- (d) Members of the Body of Benchers.

47. Mr. Ajayi Benjamin is the Principal Counsel at Ajayi Legal Consult, located along Ogbomoso Street Area 8, Garki, Abuja, a very busy Law Firm. Mr. Ajayi has employed eight (8) young and vibrant lawyers to work with him. During your just concluded Externship Programme, five (5) students of the Nigerian Law School were posted to the Law Firm. The externs were able to observe and learn about the day to day running of the Law Firm.

Answer the following questions:

- (a) A Sole Proprietorship.
- (b) A Sole Practitionership.
- (c) A Partnership.
- (d) An Associateship

48. In the type of law firm described above, which of the following item is very essential

- (a) A personal diary.
- (b) A personal calendar.
- (c) An office diary
- (d) An office calendar.

49. Which of the following is mandatory for the Law Firm under the Rules of Professional Conduct for Legal Practitioners?

- (a) Client's Account
- (b) A four (4) Room office Facility.
- (c) Opening of a current account for all the salaried Lawyers in the law Firm.
- (d) All of the above.

50. A most important office equipment you would find in the above Law Firms is

- (a) A fax machine.
- (b) A computer.
- (c) A photocopier.
- (d) A pager.

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